THE STATE
versus
NICHOLAS MASANGUDZA

HIGH COURT OF ZIMBABWE
MUREMBA J
HARARE; 3-5; 25 February & 13 March 2025

Criminal Trial

Assessors: Mr. Shenje
Mr. Chakuvinga

A Masamha, for the State
G T Kavuru, for the accused

MUREMBA J:

1. The accused faces a murder charge under section 47(1) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] (the Criminal Law Code). It is alleged that on 27 January 2025, at Cottco Panning Site in Bindura, he fatally stabbed Panashe Chidodo once in the chest and once in the thigh resulting in his death.

2. The State alleges that earlier that day, around 11 a.m., the accused was at his girlfriend's residence in Msasa Street in Chipadze. While there, he noticed messages on her phone from the deceased. Pretending to be his girlfriend, Melody, he engaged in a conversation with the deceased and eventually lured him to a mountain near Cottco, under the pretence of meeting Melody. Believing he was chatting with his girlfriend, the deceased agreed to the meeting. Upon arriving at the mountain, the deceased was surprised to find the accused instead of Melody. The accused confronted him about why his contact details appeared in Melody's phone. A fight ensued, during which the accused drew a knife from his pocket and stabbed the deceased once in the chest and once in the thigh before fleeing the scene. The deceased succumbed to his injuries at the scene. The post mortem report states that the causes of death were cardiac tamponade; heart wound and stab wound.

3. The accused pleaded not guilty, asserting in his defence that he had never met the deceased, either in life or at the time of his death. He denied being at Melody's residence as alleged and claimed not to have had a girlfriend named Melody, stating that his girlfriend at the time was one Chipo Mujeri. Additionally, he alleged that, upon his arrest, police officers assaulted and tortured him during interrogation, forcing him to make indications against his will. He maintained that he did not lead them to the crime scene and that they, instead, guided him there. He further claimed that the blood-stained t-shirt recovered by police during investigations was his, but the blood on it resulted from a nosebleed he suffered on a different day from the one the deceased was murdered.

4. Despite the accused's protestations of innocence, we are satisfied, based on the evidence presented, that he was responsible for the deceased's murder at Cottco Mountain. It is undisputed that no one witnessed the accused committing the alleged crime at the mountain. The person closest to the scene was Mitchel Chipadze, whose testimony was formally admitted under Section 314 of the Criminal Procedure and Evidence Act [*Chapter 9:07*] (the CPEA). Her uncontested evidence stated that on the fateful day, at approximately 17:00 hours, she was weeding her field when she heard screams coming from the nearby bush. Shortly after, she observed an unknown male adult fleeing the area. She immediately alerted people at the gold hammer mills, who then proceeded to the scene, located about 100 metres from her field. Upon arrival, they discovered the deceased's lifeless body and notified the police. It remained common cause that Mitchel Chipadze did not identify the fleeing individual.

5. Detective Sergeant Tinashe Bikiwani of the Zimbabwe Republic Police (ZRP) was assigned to investigate the case on the day of the murder. Upon arriving at the crime scene with other detectives, he observed deep wounds on the deceased's chest and right thigh. The body was then transported to Bindura Hospital, where a doctor certified the death. On 4 February 2024, Bikiwani received a tip-off identifying the accused as the perpetrator. According to the informant who remained unidentified throughout the trial, the accused had been hallucinating and speaking about killing the deceased. Acting on this tip,

Bikiwani arrested the accused, who later made indications to a separate team of officers led by Detective Kudzai Gondo.

6. During trial, the accused challenged the admissibility of the indications, asserting they had not been made freely and voluntarily. These indications had not been confirmed in the Magistrates Court. However, following a trial within a trial in this court, we determined that the indications were given freely and voluntarily, and thus permitted the State to produce them. We deemed them admissible for the following reasons. In explaining why he claimed the indications were not made freely and voluntarily, the accused initially fabricated a story involving Bikiwani's participation in the process. He falsely alleged that he had been severely assaulted and coerced by Bikiwani and another officer known only as "Black Jesus" before leaving the police station. According to the accused, he was told by Bikiwani to cooperate by making the indications. He further claimed that throughout the process, Bikiwani was armed with a firearm and that the police officers led him to the mountaintop crime scene because they had previously visited it. The accused said that all other police officers who participated in the indications neither assaulted him nor threatened him in any manner.

7. The State presented its case through testimony from officers Kudzai Gondo and Silence Rafamoyo who participated in the indications. Both denied that Bikiwani was involved in the indications. Bikiwani himself testified, vehemently denying any participation or knowledge of a detective nicknamed Black Jesus. During the defence case, the accused reversed his earlier claims, admitting that Bikiwani had not participated in the indications. He offered a new version, alleging that Bikiwani and Black Jesus had assaulted him at the police station before he was handed over to the team conducting the indications. Given the accused's fabrications and inconsistencies, the court found no credible evidence that he had been assaulted before the commencement of the indications. The accused's assertion that Bikiwani was armed throughout the indications was clearly false, as Bikiwani was not present at all. This falsehood undermines the plausibility of his claim that Bikiwani and Black Jesus assaulted him prior to the indications.

8. When a witness is found to have lied about a material fact, it casts doubt on the entirety of their testimony unless independently corroborated. In this case, no such corroborative evidence was presented showing that the accused was ever assaulted before the commencement of the indications. Therefore, the remainder of the accused's testimony in the trial within a trial lacked credibility. However, the fact that an accused is found to have lied during his testimony in the trial within a trial does not, in itself, bring the inquiry to a close.[1] The court remains obliged to assess the evidence in its entirety to determine whether the indications were made freely and voluntarily, without any undue influence, bearing in mind that the onus rests on the State to prove this beyond reasonable doubt. In the present case, the police officers who conducted the indications denied assaulting and threatening the accused in any manner. On the other hand, the accused acknowledged that the police officers involved in the indications neither assaulted nor threatened him. On this basis, we were satisfied that the State had successfully discharged its burden of proof beyond reasonable doubt. We accordingly found that the accused had made the indications freely and voluntarily. As such, we ruled them admissible, and the State proceeded to produce them. They were marked as Exhibit 2.

9. The ruling that indications are admissible does not speak to their truthfulness. It only means that they were obtained by proper means. In other words, when a court rules that indications (or statements, confessions, etc.) are admissible, it is making a determination about how the evidence was obtained, not whether the content of the evidence is true. The focus is on whether the accused gave the indications freely, voluntarily, and without coercion, threat, or inducement. This is part of ensuring a fair process and upholding constitutional protections. Truthfulness, on the other hand, is a matter of weight, not admissibility. Once admitted, it is then for the court to assess the credibility and truth of the indications, typically by examining surrounding evidence and the consistency of the statement. So, admissibility is about procedure; truthfulness is about substance.

[1] John Reid Rowland *Criminal Procedure in Zimbabwe*, LRF 1997 at p 20-19

10. When courts assess the admissibility of indications, confessions, or any statement made by an accused, they are typically safeguarding several key constitutional protections. Some of the most universally recognized rights are as follows. The right to a fair trial protected under Section 69(1) of the Constitution. This includes the principle that evidence used against an accused must be obtained in a lawful and just manner. The right to remain silent and not to incriminate oneself under s 50 (4)(a) and (c) of the Constitution. This is a cornerstone of criminal justice. Accused persons should not be compelled to confess or give evidence against themselves. The right to be protected from torture, cruel, inhuman or degrading treatment under s 53 of the Constitution. If a statement is obtained through coercion, assault, or psychological pressure, it violates this protection. The right to be presumed innocent until proven guilty under s 70 (1) (a) of the Constitution which ties into the burden on the State to prove beyond reasonable doubt that any statement admitted was given freely and voluntarily. These safeguards are there not just to protect accused persons, but to preserve the integrity of the justice system itself. A guilty verdict must be arrived at through means that respect the rule of law.

11. In the indications, produced as *Exhibit 2*, the accused directed officers from the police station to the crime scene. Once there, he explained his actions on the fateful day. He said he had the phone of his girlfriend Melody when the deceased called but did not answer. Instead, he responded to a text message while pretending to be Melody and agreed to meet the deceased. He claimed his intention was merely to confirm the deceased's identity. He also stated that carrying a knife was his habit. He said upon meeting the deceased at around 3 p.m., he dialled the deceased's number to ensure he had identified the right person. He then questioned the deceased about how he obtained his girlfriend's contact details. The deceased, sensing hostility, grabbed the accused's collar, prompting a fight. Feeling overpowered, the accused said he withdrew his Columbia knife from the right bottom pocket and stabbed the deceased multiple times - once in the thigh, once in the arm, and once in the chest before fleeing to Bonanza's Hammer Mills to continue his business. He said he discarded the knife while running and claimed not to know where it fell.

12. The next issue for consideration is the probative value of the indications made by the accused. Probative value refers to a piece of evidence's capacity to prove something significant in a case. Put simply, the central question is: To what extent does this evidence help establish the truth or a material fact in issue? In the context of indications, their probative value depends on several factors. One is specificity and accuracy—did the accused disclose information that only the actual perpetrator would have known, such as the precise location of the body or detailed knowledge of the injuries sustained? Another is consistency with other evidence—do the indications align with physical findings, such as post-mortem results or eyewitness accounts? A further consideration is the voluntariness and credibility of the statements—were the indications made freely, without coercion, and are they internally consistent and believable? In summary, the probative value of indications lies in how strongly they support the accused's guilt or confirm essential facts in issue. Their evidential weight must be assessed in light of the surrounding circumstances and the context in which they were made. Where the indications contain clear admissions or lead to the discovery of critical evidence (such as the murder weapon or the victim's body), they carry substantial or high probative value, as they provide direct support for the prosecution's case.

13. In *casu* the accused's indications placed him at the crime scene, as he led the police to the mountaintop where the deceased's body was recovered, an act strongly suggestive of firsthand knowledge unlikely to exist unless he was directly involved. He stated that he had stabbed the deceased in the thigh, arm, and chest, and this account was consistent with the actual injuries observed by the pathologist who examined the remains of the deceased. The accused further claimed to have fled the scene afterward, a claim corroborated by eyewitness Mitchel Chipadze, who reported hearing screams and seeing a man fleeing the area. Although she estimated the time of the screams to be around 5 p.m., while the murder was determined to have occurred closer to 3 p.m., this discrepancy is insignificant as her reference was clearly approximate. Crucially, Mitchel was the one who alerted individuals at the gold hammer mills, leading to the discovery of the body and notification of the police. Her role underscores the reliability of her account. Taken as a whole, the indications made by the accused amount to a complete admission or confession to murder. Their alignment

with forensic findings, and consistency with eyewitness testimony give them high probative value, clearly pointing to the accused's direct participation in the offence.

14. In terms of section 273 of the Criminal Procedure and Evidence Act, an accused person may be convicted solely on the basis of their own confession, provided that the offence is proven to have been actually committed. See *S* v *Shonhiwa* 1987 (1) ZLR 215 (SC) at 218H -219A. In the present case, it is an established fact that Panashe Chidodo was murdered, and the accused confessed to the killing. On this basis alone, the accused is guilty of murder. He has no valid defence, as he was the one who lured the deceased to the crime scene. His explanation was that, during a fistfight that ensued between them, he reached into the pocket of his trousers, drew a knife, and stabbed the deceased upon realising he was being overpowered. It must be noted that the deceased was unarmed and the accused was not even acting in self-defence. His reason for stabbing the deceased was that the deceased was now overpowering him. In *S v Mutoti* (41 of 2023) ZWCHHC 15 (25 August 2023) it was held that intention can be inferred from the circumstances of the case like the weapon used, the part the blow was directed and the number of blows inflicted.

15. Drawing from the principle established in *S* v *Mutoti*, it can be inferred from the objective circumstances surrounding the killing of the deceased in this case that the accused intended to kill the deceased. Several key factors support such an inference. The accused used a knife, which is inherently a dangerous weapon capable of causing death. He had retrieved it from his pocket. Retrieving a knife from his trousers during a fistfight suggests a deliberate escalation to lethal force. The deceased sustained stab wounds to the thigh, ring finger and chest. A stab to the chest, where vital organs like the heart and lungs are located, is especially telling. It reflects an intention to cause serious injury or death. The post mortem report which states that the causes of death were cardiac tamponade; heart wound and stab wound means that the stab wound pierced the heart, and the bleeding into the space around the heart caused the heart to stop functioning. A stab wound reaching the heart suggests deep penetration, which likely required deliberate and forceful thrusting. Even the thigh injury could have severed a major blood vessel, showing a disregard for the consequences. Multiple stab wounds (three) were inflicted, indicating persistence by the

accused and not an accidental or reflexive act. This repetition suggests focused aggression rather than a defensive or spontaneous reaction. The accused is the one who had lured the deceased to a secluded location (a mountaintop), which supports a degree of planning. His account of being overpowered during a fistfight appears self-serving and was not corroborated by evidence showing the deceased was armed or threatening. The accused fled the scene after the stabbing, behaviour that often reflects consciousness of guilt. Taken together, these factors provide a strong evidential basis to infer actual intention or, at the very least, realisation that death was a probable consequence of his actions and proceeding nonetheless. Therefore, on the basis of the confession the accused made and that he intentionally killed the deceased, he is guilty of the offence of murder that he is charged with.

16. In the closing submissions, counsels submitted that the evidence that was presented by the State against the accused was solely circumstantial. We are not in agreement. It is our considered view that the nature of the confession made by the accused person in this case amounts to direct evidence as he confessed to luring the deceased to the mountain and stabbing him until he died before he fled the crime scene. Direct evidence is testimony or material that, if believed, directly proves a fact in issue without needing inference. When an accused person confesses to committing a crime, especially in clear terms like, "I stabbed the deceased," they are explicitly admitting to the act in question. This is a direct link between the accused and the crime. No additional inference is necessary to connect the accused to the crime. If the confession is established as credible and admissible, it is sufficient to cause the conviction of the accused. In *Wilson Muyanga* vs *The State* HH 79-13 it was held that;

> "In a direct evidence case, if the evidence is accepted beyond reasonable doubt, it is capable of proving the guilt of the accused."

17. However, if a confession requires interpretation or depends heavily on surrounding circumstances to make sense or be believable (for instance, a vague or ambiguous statement like "I was there, and things got out of hand"), it may not directly establish guilt or any essential element of the offence. The court would need to draw inferences from

context. What does "things got out of hand" mean? Did the accused participate, witness, or try to stop it? In such cases, the confession leans toward being circumstantial evidence, because it needs external facts or interpretation to make its incriminating meaning clear. In *Wilson Muyanga* v *The State supra*, the court explained that circumstantial evidence arises where there is no direct proof of the accused's guilt, such as an eyewitness account. However, this does not make the case weaker. Sometimes direct evidence is unreliable. In a circumstantial case, the State presents a series of facts which, individually, do not prove guilt, but when combined, allow the court to draw reasonable inferences. The approach is sequential: first, the court must accept certain basic facts as established; then it considers whether, taken together, they point logically to the accused's guilt. The strength of circumstantial evidence lies in the coherence and cumulative effect of these facts, leading to a compelling conclusion beyond reasonable doubt.

Therefore, in short: a confession is direct evidence if it can prove the accused's guilt without inference. If it cannot prove the accused's guilt without inference from other factors it is circumstantial evidence.

18. Thinkwell Muchenje's testimony reinforces the State's case against the accused. Thinkwell, a friend of the accused, provided evidence for the State, which evidence was formally admitted under section 314 of the *Criminal Procedure and Evidence Act*. On the day in question, he and the accused were working at Cottco, panning for gold. According to Thinkwell, around 12:00 p.m., the accused abruptly disappeared for approximately three hours without informing him where he was going. Upon his return, Thinkwell overheard people at the panning site discussing a murder that had occurred in the bush adjacent to Cottco. He rushed to the scene and saw the deceased's lifeless body, which had a chest injury. When Thinkwell returned to the work site, the accused confronted him, demanding to know why he had visited the crime scene. At that moment, Thinkwell noticed that the accused was shirtless, having removed the t-shirt he had been wearing before his disappearance.

19. The following day, 28 January 2024, at around 7:00 a.m., the accused visited Thinkwell's residence and left behind the red t-shirt he had worn the previous day. Later, they proceeded to work. On 5 February 2024, at approximately 11:00 a.m., the accused returned to Thinkwell's place accompanied by police officers, claiming he wanted his t-shirt back. The police retrieved it, and that was when Thinkwell noticed that it was stained with blood. It is undisputed that the accused's blood-stained t-shirt was never subjected to forensic DNA analysis to determine whose blood was on it. Consequently, it cannot be said that the blood belonged to the deceased. Investigating Officer Bikiwani explained that, by the time the t-shirt was recovered at the accused's direction, the deceased had already been buried, leaving no sample available for DNA comparison. However, Bikiwani stated that the accused who was very cooperative throughout investigations is the one who told them about the t-shirt he was wearing on the day of the murder, which prompted police officers to search for and recover it at Thinkwell's residence.

20. The significance of the t-shirt lies in its connection to the accused. Thinkwell testified that the accused had worn it before his disappearance on the day of the murder. Upon his return, he was shirtless, having removed it. It is no coincidence that, after his arrest, the accused informed police officers that he had worn that same t-shirt on the day of the murder and led them to its recovery at Thinkwell's residence. It is therefore clear that Thinkwell, whose testimony was formally admitted by consent, did not fabricate his account. It is our conclusion that the accused discarded the t-shirt after realizing that it was stained with blood during his encounter with the deceased. We reject the accused's assertion that the blood stain resulted from a nosebleed he experienced at a bar while with Thinkwell on a different day from the day the deceased was murdered. This claim contradicts Thinkwell's testimony, which went unchallenged and was admitted with the defence's consent.

21. Having accepted Thinkwell's evidence during the State case, it was illogical for the accused to present an entirely different and contradictory explanation during the defence case. His attempt to distance himself from the truth was evident. However, the reality is that the t-shirt placed him at the crime scene. To make matters worse, it is he himself who told the police about the t- shirt. He is the one who led the police recover it. The absence

of a DNA test does not weaken the State's case. Had forensic analysis been conducted, it could have confirmed whether the blood belonged to the deceased or the accused. If it had been the deceased's blood, it would have incontrovertibly linked the accused to the murder as direct evidence. If it had been the accused's blood, this result would not have exonerated him. Rather, it would have merely introduced speculation as to whether he sustained an injury or had a nosebleed during the altercation.

22. Thinkwell's testimony further strengthens the State's case regarding the timing of the murder. The accused indicated that he met the deceased at the crime scene at approximately 3:00 p.m., though he did not state the time with precision. This aligns with Thinkwell's account, in which he stated that the accused left the work site around midday and was absent for roughly three hours, returning at approximately 3:00 p.m. At that very moment, Thinkwell overheard people at the panning site discussing a murder that had just occurred in the nearby bush. He immediately rushed to the scene and discovered the deceased. Accordingly, both the time provided by the accused during the indications and Thinkwell's testimony point to the murder having occurred around 3:00 p.m.—their accounts mutually reinforcing each other. By contrast, Mitchel Chipadze, who was working in her field at the time, reported hearing screams and seeing a man fleeing but estimated the incident occurred around 5:00 p.m. It is apparent that her estimation was inaccurate and should be treated as an approximation rather than a precise account.

23. The evidence of Thinkwell and Mitchel both constitute circumstantial evidence. None of them witnessed the murder being committed. The circumstantial evidence they presented forms a tight, interlocking chain that, when viewed cumulatively, points clearly and logically to the guilt of the accused. The following are the interconnected circumstantial facts from their evidence. On the day of the incident, the accused abruptly disappeared from his place of work at Cottco without explanation between approximately 12:00 p.m. and 3:00 p.m. During his absence, a murder took place in the nearby bush. Upon his return, he was no longer wearing the red t-shirt he had left in. At that very moment his co-worker and friend, Thinkwell Muchenje, heard about a murder which had just happened close by. He visited the murder scene and upon his return the accused aggressively asked him why

he had visited the murder scene. The accused's aggressive inquiry signalled a deep concern that suggested knowledge or involvement. The following morning, the accused left behind the red t-shirt at Thinkwell's residence. Days later, he returned with police officers, directing them to retrieve the shirt, which by then was stained with blood. While no forensic analysis was conducted due to the deceased's burial, the significance lies in the fact that the accused admitted to having worn the shirt on the day of the murder. His claim that the blood originated from a prior nosebleed was discredited by Thinkwell's unchallenged testimony, which was formally admitted under section 314 of the Criminal Procedure and Evidence Act. Testimony from Mitchell Chipadze, a neutral witness, who was working in her field roughly 100 meters from the scene, described hearing a scream and seeing a man flee the bush around the same time. Though she could not identify the fleeing man, her account provides external corroboration consistent with the accused's own admission that he left the scene running.

24. Taken individually, none of these pieces of evidence may be conclusive. However, in accordance with the legal reasoning espoused in *Wilson Muyanga* v *The State supra*, their cumulative effect constructs a coherent and compelling picture of guilt. The accused's movements, his unexplained disappearance, his possession and later discarding of a blood-stained shirt, his confrontation with Thinkwell, and his admission to wearing the shirt on the day in question all align with the known facts of the case. This chain of circumstantial evidence not only sustains the State's case but also substantially bolsters the voluntary and freely made confession the accused provided during his indications to the police. That confession, confirming he stabbed the deceased and fled the scene, is not only consistent with the physical and testimonial evidence but is logically reinforced by it.

25. The defence counsel criticized the State for failing to produce evidence of alleged cellphone conversations between Melody and the deceased. He argued that Investigating Officer Bikiwani had conducted a subpar investigation by neglecting to obtain such records from cell phone service providers. Bikiwani admitted to this omission, but he also explained that he had been unable to locate Melody, the woman at the centre of the dispute. He said that the mining area made tracking individuals difficult. What even made it even

worse in this case was that he had learnt that Melody was a sex worker, a profession known for its nomadic nature. While obtaining the cell phone chat records and locating Melody would have bolstered the State's case, their absence is not detrimental, given the overwhelming evidence against the accused. The accused's indications (wherein he confessed to the crime), combined with testimony from Thinkwell and Mitchel Chipadze, establish his guilt beyond reasonable doubt. In other words, the combination of circumstantial and direct evidence adduced in this case leaves little room for doubt regarding the accused's culpability.

In conclusion, we find the accused guilty of murder as defined under section 47(1)(a) of the Criminal Law (Codification and Reform) Act.

Sentencing judgment

26. The accused, a 30-year-old male at the time of the offence in 2024 and now 31 years old, has been convicted of murder following a contested trial. The facts of the case reveal that the deceased was involved in a romantic relationship with Melody, the same woman the accused was also dating. Upon discovering this, the accused devised a plan to lure the deceased to a secluded mountain, where he ultimately stabbed him to death using a Columbia knife. The attack was fatal, and the deceased succumbed to his injuries on the spot.

27. The murder was committed under aggravating circumstances. It was carried out with a lethal weapon, a Columbia knife, which demonstrates a deliberate intent to cause serious harm. Furthermore, the act was premeditated as the accused deliberately led the deceased into a secluded bush while armed with the weapon, fully aware that his victim was unsuspecting. In terms of section 47(4)(a) of the Criminal Law Code, the statutory penalty under the circumstances is a minimum of 20 years' imprisonment and a maximum of imprisonment for life. The applicable presumptive penalty is 20 years' imprisonment.

28. However, the several aggravating factors in this case warrant a sentence far exceeding the presumptive penalty. Firstly, there was no provocation of the accused by the deceased. The

deceased was simply a young man aged 21 years engaged in a relationship with Melody, unaware of the accused's involvement with her. If the accused had an issue with the situation, the rational course of action would have been to address Melody directly rather than resorting to violence against an innocent individual. Secondly, the accused's actions were deliberate. He tricked the deceased into coming to the scene, under the impression that he was meeting his girlfriend. The deceased was unsuspecting and unarmed, making him completely vulnerable to the accused's attack.

29. Moreover, the circumstances of the murder strongly indicate premeditation. The accused armed himself with a knife before arranging the meeting, which contradicts his claim that he simply wanted to confirm the deceased's identity. If that had been his only intention, he could have arranged to meet at a public location rather than an isolated area where no one could intervene. As a result, the attack cannot be viewed as impulsive but rather as a calculated act of violence. Additionally, the deceased lost his life tragically. He was a young man killed by someone he did not even know. The accused has shown no remorse whatsoever, offering no apology or compensation to the deceased's grieving family.

30. The impact of the deceased's death on his family has been profound. He was the last-born child in a family of four and lived with his parents, assisting them financially through piecework. His mother, devastated by his death, developed hypertension. The entire family has been left traumatized by the loss, emphasizing the severity of the crime. Given these circumstances, a harsher sentence beyond the presumptive and minimum 20 years is warranted.

31. While life imprisonment is the maximum sentence available in such cases, the court will not impose that ultimate penalty due to certain mitigating factors. Among the factors considered in mitigation is the accused's relatively young age. At 31 years, he may still have the potential for rehabilitation. Additionally, he is a first-time offender, having had no prior brushes with the law. The accused is a father to three children from different mothers, all of whom rely on him for support. Furthermore, he had been responsible for caring for his grandmother. Another significant factor is the accused's pretrial incarceration

period. He remained in custody for over a year, from 4 February 2024 until the conclusion of the trial on 13 March 2025.

32. After considering both the aggravating and mitigating factors, together with the period the accused has already spent in custody awaiting the finalisation of the matter, we find that the sentence of 30 years' imprisonment proposed by the State is appropriate. This punishment reflects the gravity of the offence while accounting for the accused's personal circumstances unlike the sentence of 14 years' imprisonment proposed by the accused's legal practitioner. We reject the submission by the defence counsel that the offence was committed in non-aggravating circumstances because it was a crime of passion. The evidence demonstrates otherwise as this was not a spontaneous, heat-of-the-moment tragedy. The accused deliberately lured the deceased to a secluded location, indicating a measure of premeditation inconsistent with a spontaneous emotional outburst. He armed himself with a knife and inflicted multiple targeted stab wounds, including to the chest, a vital area on an unarmed victim. This deliberate and disproportionate use of force undermines any suggestion of sudden provocation or loss of self-control. The way the murder was executed reflects calculated, purposeful violence.

33. A crime of passion typically involves a sudden and intense emotional reaction, often triggered by provocation that causes the accused to temporarily lose self-control and commit the offence on impulse, without premeditation. In *casu* the accused did not act in the heat of the moment. It cannot be said that there was immediate provocation when he attacked the deceased viciously as he did and that there was no cooling-off period. The accused's actions were deliberate, sustained, and conscious. The foregoing justifies the rejection of the claim that this was a crime of passion and point to aggravating, rather than mitigating, circumstances.

Accordingly, the accused is sentenced to 30 years' imprisonment.

National Prosecuting Authority, State's legal practitioners
Madotsa & Partners, accused's legal practitioners